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Case Detail

← Back to Results

Zhang v. Li & Wang (Gift Contract Dispute)

Husband kept a relationship with a third party during marriage and made multiple gifts. Wife sued to confirm the gifts void and recover property.

Marital Gifts | Third Party | Public Order

Case Information

Case No.	**(2022) 京 0105 民初 12345 号**
Court	**Chaoyang District People's Court, Beijing**
Judges	**Presiding Judge Wang, Judges Li and Zhang**
Filing Date	**2022-03-15**
Hearing Date	**2022-06-20**
Judgment Date	**2022-09-10**
Amount in Dispute	**RMB 1.2 million in dispute**
Causes of Action	**婚姻家庭纠纷, 赠与合同纠纷**

Case Facts

Plaintiff Zhang and defendant Li are married. During the marriage, Li kept an improper relationship with defendant Wang and transferred/gifted assets totaling about RMB 1.2 million. Upon discovery, Zhang sued to confirm the gifts void and demanded full return.

Claims

1. **Confirm Li's gifts to Wang are void;**
2. **Order Wang to return RMB 1.2 million;**
3. **Defendants bear litigation costs.**

Reasoning

The court held that one spouse gifting marital property to a third party without consent constitutes unauthorized disposal and violates public order; the gifts are void, and the third party must return all property.

> **Related Laws:** Civil Code Art. 153, Civil Code Art. 157, Civil Code Art. 1062

Judgment

1. **Confirm Li's gifts to Wang are void;**
2. **Wang shall return RMB 1.2 million to Zhang within 10 days;**
3. **Defendants bear case acceptance fees.**

Case Timeline

2022-03-15
Zhang filed suit with Chaoyang District Court, Beijing.

2022-06-20
Public hearing held; both sides debated the validity of gifts.

2022-09-10
Court ruled in favor of all plaintiff's claims.

2022-10-08
Judgment effective; Wang voluntarily performed return obligation.

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